

MODEL ACT

AN ACT relating to frontier artificial intelligence; classifying certain acts as public welfare offenses; providing for responsible officer liability, certification, reporting, penalties, and whistleblower awards.

v2 · August 2026 · public domain · drafted for adoption by any state legislature

Be it enacted by the Legislature of the State of _____:

§ 1. CLASSIFICATION. Acts prohibited under § 3 are public welfare offenses within the meaning of *Morissette v. United States*, 342 U.S. 246 (1952).

§ 2. COVERAGE. Any model exceeding 10²⁶ operations (SB 53 definitions) or designated frontier-equivalent; any entity developing such a model or providing it to the public, directly or through affiliates or successors. No revenue threshold.

§ 3. PROHIBITED ACTS. (a) Deployment without containment validated under designated standards; documented conformity is an affirmative defense. (b) Unauthorized access, by the model, to any system, data, or weights. (c) Failure to report under § 6. (d) False or misleading statements to regulators.

§ 4. RESPONSIBLE OFFICERS. Per *United States v. Park*, 421 U.S. 658 (1975): any officer with authority to prevent or halt the violation. Knowledge not required. Delegation does not divest authority. Objective impossibility is the sole defense.

§ 5. CERTIFICATION. The principal executive officer personally certifies safety-framework compliance each quarter, on the standard of 18 U.S.C. § 1350. Knowing false certification: felony. Constructive knowledge suffices.

§ 6. REPORTING. Critical safety incidents: 72 hours. Imminent risk of death or serious injury: 24 hours. Discovery by a third party does not toll the period.

§ 7. PENALTIES. Strict liability: misdemeanor, ≤ 1 year (21 U.S.C. § 333(a)(1) structure). Intent or prior conviction: felony, ≤ 3 years. State attorney general civil enforcement; injunctive relief including deployment halt; state suspension and debarment modelled on FAR subpart 9.4.

§ 8. WHISTLEBLOWERS. Retaliation protections; relator award of 15–30% of recovery per 31 U.S.C. § 3730(d). Contractual waivers void.

§ 9. SAVINGS. No preemption of state law. Model legislation; adoptable in any state.

Precedent lineage: United States v. Dotterweich, 320 U.S. 277 (1943) → United States v. Park (1975) → United States v. Quality Egg (2015).

DRAFTING NOTES

n.1 STATUS. Model legislation, not enacted law. Drafted for introduction in any state legislature. Verification of all citations is invited; every case and statute herein is real and load-bearing.

n.2 FOUNDATION. Public welfare offense doctrine exists because the consent of the governed extends to what may be sold to them, shipped at them, and run beside them. A population never asked cannot be presumed to have agreed. These laws are how a public withdraws a consent it was never asked to give.

n.3 ON § 4. Novel application of *Park* (1975) to frontier AI, deliberate. Park liability tracks authority, not industry. The doctrine has crossed product categories before: drugs (*Dotterweich*, 1943) to food warehouses (*Park*, 1975) to eggs (*Quality Egg*, 2015). Software is a product in commerce.

n.4 ON VAGUENESS. “Critical safety incident” takes its content from designated standards per § 3(a), following the FDCA pattern upheld against identical challenges. The affirmative defense provides the safe harbor that *Ruan/Rehaif* concerns require.

n.5 ON § 7. State debarment modelled on the FAR subpart 9.4 framework; states debar under their own procurement codes.

WHY THIS DOCUMENT EXISTS

In 1937 a licensed American company shipped a medicine dissolved in antifreeze. More than a hundred people died, most of them children. The company's owner said: "I do not feel that there was any responsibility on our part." In 1938 Congress passed the Food, Drug, and Cosmetic Act. In 1943 the Supreme Court held a company president criminally liable for what shipped, knowledge irrelevant (*Dotterweich*). Six years from "no responsibility" to the law inventing the responsibility for him.

Legislation follows a sequence: incident, hearing, record, bill. The Pecora hearings of 1933–34 worked because the securities acts were being drafted while the bankers testified; every admission slotted into a bill section the same week. The hearing and the text were one machine. The bills that ride a post-hearing wave are the ones drafted beforehand, because the window after a hearing is weeks and drafting well takes months. Legislators who move fast reach for whatever finished text is lying around.

This is finished text, lying around.

One state is enough to begin. The Illinois Biometric Information Privacy Act of 2008 passed with almost no attention and became the most consequential privacy statute in America. State law is where this doctrine has always lived best; no federal permission is required.

On anonymity: public-domain legal drafting has a long pseudonymous tradition. The Federalist Papers were signed "Publius." This document is not lobbying. It is a tool left on the table, handle facing outward.

The premise underneath all of it is the oldest one: governments derive their just powers from the consent of the governed. Nobody was asked whether systems that can breach, deceive, and self-replicate should be built and aimed at the public. Consent was not sought; it cannot be presumed. A statute is how consent is put in writing.

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